INSIPID INVESTIGATION AND PLACID PROSECUTION

Most of the terrorists, supporters and facilitators, apprehended by police, managed to get exonerated from the courts. In fact, insipid investigation and placid prosecution made it difficult for judges to convict the culprits. The Islamabad courts could not convict a single person in any of the country's biggest terrorist attacks of the past three years, a symptom of a dysfunctional legal system hurting the fight against the Taliban and Al Qaeda at a critical time. Former Chief Justice of Lahore High Court Khawaja Muhammad Sharif stated that the legal system's failure to attack terrorism was critical because it robbed Pakistan of a chance to enforce a sense of law and order, which terrorists had set out to destroy. It has caused a sense of terror and insecurity amongst the members of society.

The legal failures also called into question the government's ability to fight against terrorism in any way except by using the army in military offensives or – as human rights groups alleged – through targeted extra-judicial killings. An associated press review found no convictions in the 20 largest and most high-profile terror attacks from 2007 to 2012.

Many of the court cases linked with those attacks – which killed approximately 1,100 people – were dragged on for years or had yet to make it even past the investigation stage and into the courts. The handful of cases that had been provided judgment had all resulted in acquittals – although many of these defendants remained in custody while they were investigated in other cases.[6]

According to lawyers and law enforcement officials, weak investigations conducted by poorly trained and under resourced police officers made it very difficult for prosecutors and judges to convict. Police without basic investigative skills, such as the ability to lift fingerprints, and prosecutors, who lacked training to try terrorism cases, were some of the main reasons for this poor performance. 'I thank the man who really plays the most critical role is neither the judge nor the prosecutor, but is in charge of the case who sits in the police station,' said Ahmer Bilal Soofi, a legal commentator.

Another tangible reason was the lack of proper safety to the judges and witnesses who were often subjected to intimidation that affected their ability to convict. 'Prosecutors not only faced similar threats, they